

9 & 10 GEO. 6.

*Aberdeen Harbour
Order Confirmation Act, 1946.*

Ch. lix.



CHAPTER lix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Aberdeen Harbour. [6th November 1946.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Aberdeen Harbour Short title.
Order Confirmation Act 1946.

SCHEDULE.

ABERDEEN HARBOUR.

Provisional Order to extend the period of duration of the Aberdeen Harbour Acts 1895 to 1939.

58 & 59 Vict.
c. cxxxvi.

WHEREAS by the Aberdeen Harbour Act 1895 (hereinafter referred to as "the Act of 1895") the Acts then in force relating to the harbour of Aberdeen were consolidated with amendments and the Aberdeen Harbour Commissioners (hereinafter referred to as "the Commissioners") were constituted:

And whereas by the Aberdeen Harbour Acts 1895 to 1939 (hereinafter referred to as "the Harbour Acts") further powers were conferred on the Commissioners:

31 & 32 Vict.
c. cxxxviii.

And whereas among the Acts consolidated by the Act of 1895 was the Aberdeen Harbour Act 1868 of which section 2 (Firstly recited Act and part of secondly recited Act repealed Commencement and duration of this Act) enacted that that Act should continue in force for the space of fifty-five years namely until the first day of October one thousand nine hundred and twenty-three and from thence to the end of the then next session of Parliament and of which section 183 (Upon the expiration of this Act the property of the harbour to revert to the council) enacted that upon the expiration of that Act the property of the harbour undertaking should revert to or become the property of the lord provost magistrates and town council of the city and royal burgh of Aberdeen (hereinafter referred to as "the council"):

And whereas at the date of the passing of the Act of 1895 there were twenty-eight years of the said period of fifty-five years unexpired and section 199 (Saving rights &c. of the council) of the Act of 1895 enacted inter alia that the council should not less than three years before the expiration of the said period of twenty-eight years apply to Parliament for an Act to determine and regulate the administration of the harbour undertaking:

And whereas by section 4 (Harbour Acts to continue in force until 1935) of the Aberdeen Harbour Order 1920 the said period of twenty-eight years was extended for twelve years namely until the first day of October one thousand nine hundred and thirty-five:

And whereas by section 3 (Harbour Acts to continue in force until 1949) of the Aberdeen Harbour Order 1932 the period expiring on the said first day of October one thousand nine hundred and thirty-five was further extended for fourteen years namely until the first day of October one thousand nine hundred and forty-nine:

And whereas it is expedient that the period of duration of the Harbour Acts should be further extended as provided in this Order:

And whereas the purpose aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936:

26 Geo. 5. &
1 Edw. 8. c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Aberdeen Harbour Order 1946 and this Order and the Aberdeen Harbour Acts 1895 to 1939 may be cited together as the Aberdeen Harbour Acts 1895 to 1946.

Short title
and citations.

2.—(1) The period of duration of the Harbour Acts shall be extended and the provisions of those Acts shall remain in force until the first day of October one thousand nine hundred and fifty-two and section 199 (Saving rights &c. of the council) of the Act of 1895 shall be read and have effect as if the words “a period of fifty-seven years” had been inserted in place of the words “the said period of twenty-eight years” in subsections (2) and (3) of that section and as if the word “fifty-seven” had been inserted in place of the word “twenty-eight” twice occurring in subsection (4) thereof.

Harbour Acts
to continue
in force
until 1952.

(2) Section 3 (Harbour Acts to continue in force until 1949) of the Aberdeen Harbour Order 1932 is hereby repealed.

3. All costs charges and expenses of and incident to the preparing for obtaining passing and confirming of this Order or otherwise in relation thereto shall be paid by the Commissioners from and out of the revenues of their harbour undertaking.

Costs of Order.

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